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Budget talks continue + New calls for police reform + More time to draw political lines

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Good morning and happy Tuesday. Thanks as always for reading!

ABOUT THE BUDGET

As budget negotiations continue, California lawmakers on Monday sent Gov. Gavin Newsom an unfinished spending plan that will allow them to keep getting paid.

Monday's budget vote was largely a formality. Lawmakers have to pass a budget by June 15 to continue receiving their salary, under a 2010 law approved by voters through a ballot initiative.

In the meantime, lawmakers and Newsom are working to hammer out a budget deal. Lawmakers and the governor have proposed competing proposals for how to balance a budget with an estimated $54 billion deficit caused by the coronavirus outbreak.

Democratic legislators are angling to avoid roughly $14 billion in cuts Newsom proposed in May that would be triggered July 1 if Congress does not send states more financial assistance.

"This budget is the best we can do to make sure we don't cause extra, undue harm onto those who have already been victimized either economically or as the result of the virus," said Sen. Holly Mitchell, D-Los Angeles. "This is not where we thought we would be in January, but it's where we are today."

Newsom is giving some ground. An administration official told reporters the governor has agreed to not cut childcare programs and in-home supportive services that aim to keep adults out of nursing homes. Both are areas Newsom had initially proposed cutting in his revised May budget plan.

Check out our full report here.

ATTORNEY GENERAL CALLS FOR POLICE REFORM

California Attorney General Xavier Becerra in a press conference on Monday pledged his support for many police reforms, including calls to ban chokeholds and carotid restraints, mandatory de-escalation training, and requiring officers to intervene if another officer is using excessive force.

Becerra, however, stopped short of endorsing a call by many activists to defund the police. That has been a rallying cry for activists in the wake of the death of George Floyd in the custody of the Minneapolis Police Department

"I'm not sure what that means. Does it mean eliminating the entire budget for public safety?" Becerra asked during the conference.

The attorney general said that he welcomes all ideas.

"Some will get adopted, others won't," he said.

But one idea he supports is legislation allowing the state to de-certify a police officer found to have committed serious misconduct. Becerra said there currently is "no process in place" that allows the state to remove an officer's certification once it has been awarded.

Becerra said his office also would support legislation to place clear limits on police tactics during protests and mass gatherings, including restrictions on the use of tear gas and rubber bullets.

EMPOWERING THE DEPARTMENT OF JUSTICE

Via Hannah Wiley...

Amid national protests over police brutality and calls for changes to how officers do their jobs, a California Democrat wants the state Department of Justice to more often handle independent investigations into incidents of deadly force.

The proposal, Assembly Bill 1506, would enable local law enforcement agencies and district attorneys to more regularly request the DOJ launch a formal review of situations where an officer force that resulted in death or serious bodily harm.

The attorney general could then decide following an investigation to prosecute an officer should the force be found unwarranted.

Beginning in 2023, the proposal would also mandate a new police practices division to, if requested by a law enforcement agency, review policies and practices related to use-of-force.

It’s the second time Assemblyman Kevin McCarty, D-Sacramento, has attempted the accountability bill. A similar effort in 2017 was killed in the Senate, despite its passage through the Assembly with a majority of Democrats in support. Republicans and a coalition of moderate Democrats voted against the bill.

McCarty said he hopes national attention on police killings of black men, specifically of George Floyd in Minneapolis by a white officer, will lead to policy shifts.

“This has brought attention to smart police reforms, and this bill, to be honest, isn’t that complicated,” McCarty said. “Having independent investigations is a common sense proposal.”

Read the full story here.

REDISTRICTING DEADLINE EXTENSION REQUEST

Former California Gov. Arnold Schwarzenegger has teamed up with California Common Cause and the League of Women Voters of California to urge the California Supreme Court to step in and extend the deadline for the California Redistricting Commission’s redistricting process.

“...COVID-19 has jeopardized the commission’s work by delaying the national census. Because state and federal law require the commission to use census data for redistricting, delays in the national census mean that the commission will be unable to meet its constitutional and statutory deadlines,” they wrote in an amicus letter to the Supreme Court.

The U.S. Census Bureau is asking for a four-month extension for delivering population data to the states by July 31, 2021. As such, the advocates are asking for a redistricting map deadline of Dec. 15, 2021, “which would preserve the critical four and a half months for line drawing allowed in the CA Constitution from the census data release,” according to a statement.

BIPARTISAN LETTER TO CONGRESSS

A group of Republican and Democrat California lawmakers have sent a letter to House Speaker Nancy Pelosi and House Minority Leader Kevin McCarthy, urging immediate action on clean energy.

The letter, signed by 52 lawmakers, calls on Congress to:

Extend the investment tax credit for clean energy technologies.Provide direct payments of tax credits for the next 18 months and extend the safe harbor provisions.Continue investments and incentives for the transition to electric vehicles.Extend and improve the critical residential and commercial tax incentives for energy efficiency.

“Investing in clean energy has a quadruple bottom-line for California,” said lead author Assemblyman Jesse Gabriel, D-Encino. “It will lead to faster economic recovery, lower energy bills, improved resiliency, and cleaner air for folks across our state. We’re asking our federal partners—especially the Californians in leadership positions in the House of Representatives—to prioritize clean energy in the next round of economic recovery efforts.”

QUOTE OF THE DAY

Democrats and Republicans had different takeaways from Monday’s budget vote.

“Proud to vote for a budget that attempts to minimize cuts—including in childcare and education— and looks out for immigrant families that live and work among us, but were shamefully left with no safety net by the federal government. These are tough times, this is a fair budget.”

- Assemblywoman Lorena Gonzalez, D-San Diego, via Twitter.

“Today’s budget: the pros include funding to save Barstow Veterans Home & education, the cons are it’s structurally irresponsible & full of gimmicks, including budget deferrals, billions in borrowing, a $4.4 billion tax increase on businesses, & depletion of most of our reserves!”

- Assemblyman Jay Obernolte, R-Big Bear Lake, via Twitter.

Best of the Bee:

First deal on California state worker pay cuts: What correctional officers give up, get, via Wes VenteicherCalifornia’s sanctuary law upheld by Supreme Court. Here’s what it means, via Kim BojórquezA California Department of Corrections and Rehabilitation officer accused of assaulting his girlfriend, permanently disfiguring her, faced no discipline for his actions despite sufficient evidence of his guilt, according to a new report from the California Office of the Inspector General, via Andrew Sheeler.Before the coronavirus sickened nearly 150,000 Californians and crashed the economy, Gov. Gavin Newsom and state lawmakers pledged to solve what was just months ago the state’s most pressing crisis: homelessness. Assembly Democrats recommitted themselves last week to that promise, passing bills that would create a right-to-housing law by 2026, speed construction of emergency shelters and provide more oversight of how government agencies spend money meant to get people off the streets, via Hannah Wiley.

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